



VoxTable SaaS Subscription Terms

Standard B2B terms for restaurant and hospitality customers

Version 2.1 | Effective 27 August 2026

These VoxTable SaaS Subscription Terms (Terms) govern access to and use of VoxTable. If the Order Form identifies the Customer Territory as the United Kingdom, the supplier is Biteperk Ltd, company number 17379647, incorporated in England and Wales, with registered office at 124 City Road, London, England, EC1V 2NX. If the Customer Territory is Australia, the supplier is Biteperk Pty Ltd, ACN 700 831 303 / ABN 36 700 831 303, of Level 1/457-459 Elizabeth Street, Surry Hills NSW 2010, Australia. The applicable supplier is Biteperk, we, us or our. The business identified in the Order Form is Customer, you or your.

These Terms are intended for business customers only. They are incorporated by reference into each accepted Order Form. Restaurant-specific pricing, locations, service configuration and commercial term are stated in the Order Form, not in these standard Terms.

1. Agreement, hierarchy and definitions

1.1 The Agreement consists of the Order Form, these Terms, the VoxTable Data Processing Addendum (DPA), the applicable regional schedule and any service schedule expressly incorporated in the Order Form.

1.2 If the documents conflict: (a) the Order Form prevails for expressly agreed customer-specific commercial terms; (b) the applicable regional schedule prevails for mandatory local-law matters; (c) the DPA prevails for processing of Customer Personal Data; and (d) these Terms otherwise prevail.

- **AI Agent:** the conversational artificial-intelligence voice agent made available through VoxTable.
- **Authorised User:** a person Customer authorises to access the Services on its behalf.
- **Customer Data:** data submitted to, stored in or generated through the Services on Customer's behalf, including booking/order data, authorised venue information, call audio and transcripts where enabled.
- **Documentation:** Biteperk's then-current user and technical documentation made available for the Services.
- **Order Form:** the written or electronic order identifying Customer, Customer Territory and customer-specific commercial terms.
- **Services:** the VoxTable hosted software, AI voice functions, dashboard, telephony/reservation functionality, messaging and integrations stated in the Order Form.
- **Subscription Term:** the initial term and any renewal term stated in the Order Form.

2. Subscription right and Service scope

2.1 Subject to payment of all undisputed fees and compliance with the Agreement, Biteperk grants Customer a limited, non-exclusive, non-transferable and non-sublicensable right during the Subscription Term for Authorised Users to access and use the Services for Customer's internal hospitality operations.

2.2 Depending on the Order Form, the Services may include inbound call answering, availability checks, booking or order creation and changes, FAQs, messaging, call transfer, recording/transcription, dashboard access, analytics and approved integrations.

2.3 Customer may use the Services only for the locations, telephone numbers, usage allowances and functionality stated in the Order Form.

3. AI service characteristics and human handover

3.1 Customer acknowledges that AI, speech recognition and generative technologies are probabilistic. The AI Agent may misunderstand speech, generate incomplete or inaccurate wording, or fail to complete a requested transaction.

3.2 Biteperk shall provide the Services with reasonable skill and care and substantially in accordance with the Documentation, but does not warrant perfect speech recognition, perfect AI output or uninterrupted operation.

3.3 Where human handover or callback is included in the subscribed configuration, Biteperk will provide the configured handover mechanism. Customer is responsible for maintaining valid escalation contacts and reasonable staffing arrangements for escalated calls.

4. Customer configuration and cooperation

4.1 Customer is responsible for the accuracy, completeness and timely maintenance of venue information and rules supplied to the Services, including opening hours, service periods, table capacity, party-size limits, blackout dates, menus, prices, deposits, cancellation/no-show rules, accessibility information, promotions and escalation contacts.

4.2 Customer shall provide reasonable cooperation, credentials and technical information required for approved integrations and shall maintain reasonable operational checks of bookings or orders created or amended through the Services.

5. Restaurant services, bookings and orders

5.1 VoxTable is a technology service. Biteperk does not supply food, beverages or hospitality services and is not a party to the contract between Customer and a caller, diner or guest.

5.2 Customer remains solely responsible for availability, honouring bookings/orders, service delivery, prices, deposits, refunds, cancellations, no-shows, licensing, food safety, health and safety, and compliance with laws applicable to its venue and goods/services.

6. Allergies and safety-sensitive information

6.1 The Services are not a substitute for appropriately trained staff in relation to allergies, medical needs or other safety-critical matters. Customer shall configure a suitable escalation policy and remains responsible for ingredient information, allergy verification, cross-contamination controls and safe service.

7. Telephony and telephone numbers

7.1 Calls may be routed using Customer's existing number, call forwarding, a number supplied through Biteperk or another agreed arrangement. Number ownership, portability and transfer are subject to applicable carrier rules and the Order Form.

7.2 Telecommunications, messaging or usage charges apply only as stated in the Order Form.

8. AI disclosure, recording and transcription

8.1 Customer shall ensure callers receive all notices required by applicable law regarding use of an AI assistant, recording, transcription and processing. Biteperk will provide configurable disclosure wording and implement the disclosure selected by Customer.

8.2 Customer is responsible for determining the lawful basis and any consent or notification requirement applicable to its use of call recording and transcription. Biteperk does not require Customer to rely on consent where another lawful basis is available, but Customer must comply with any stricter local rule that applies to the call.

8.3 Biteperk may suspend recording for a Customer location if Biteperk reasonably believes the configured use creates a material legal or security risk.

9. Accounts and security

9.1 Customer is responsible for Authorised User access, credential security and promptly disabling access that is no longer required. Customer shall notify Biteperk without undue delay of suspected unauthorised access or credential compromise.

10. Acceptable use

- Use the Services only for lawful business purposes and in accordance with the Agreement.
- Do not use the Services fraudulently, deceptively, abusively, discriminatorily or for emergency-service communications or other high-risk uses not expressly approved by Biteperk.
- Do not reverse engineer, extract source code, proprietary prompts or models, circumvent technical controls, or use the Services to build or train a competing service, except to the extent such restriction is prohibited by law.
- Do not introduce malware, interfere with security, conduct unauthorised penetration testing, access another customer's data or materially impair the Services.

11. Fees, taxes and payment

11.1 Customer shall pay the subscription, setup, usage, telephony, messaging, integration and other fees stated in the Order Form. Unless stated otherwise, fees exclude VAT, GST and similar taxes.

11.2 Invoices are payable within 30 days unless the Order Form states otherwise. Customer shall raise any good-faith invoice dispute promptly and pay undisputed amounts when due.

11.3 Biteperk may suspend the affected Services for materially overdue undisputed amounts after reasonable written notice and an opportunity to cure.

12. Term, renewal and cancellation

12.1 The initial term, renewal period, renewal mechanism and any notice period are stated in the Order Form. No automatic renewal applies unless the Order Form expressly says so.

12.2 Any convenience termination right, minimum commitment or early termination charge must be expressly stated in the Order Form. Nothing in the Agreement limits a termination right that cannot lawfully be excluded.

13. Price and contract changes

13.1 Price changes for an existing fixed-term subscription take effect no earlier than the next renewal, except for changes required by tax/law or requested by Customer. Biteperk will give reasonable advance notice of a renewal price change.

13.2 Biteperk may update the Services for security, legal compliance, technical improvement, third-party changes or new functionality, provided it does not materially reduce the core paid functionality during a fixed term without providing a reasonable alternative or, where the reduction is material and no reasonable alternative exists, a right to terminate the affected Service without early termination charge.

13.3 Materially adverse changes to these Terms will normally apply from the next renewal. Changes required by law or to address a material security risk may apply earlier after reasonable notice. Biteperk shall not exercise a contractual discretion arbitrarily or for a purpose unrelated to a legitimate business, security or legal need.

14. Availability, support and maintenance

14.1 Biteperk will use commercially reasonable efforts to maintain the availability of the Services. Unless an Order Form expressly includes an SLA, no specific uptime percentage or service-credit regime applies.

14.2 Planned maintenance, emergency maintenance, carrier outages, cloud/internet failures and events outside Biteperk's reasonable control may affect availability. Biteperk will use reasonable efforts to notify Customer of planned maintenance that is expected to materially affect the Services.

15. Third-party services and integrations

15.1 The Services may depend on telecommunications, cloud, AI, speech, messaging, reservation, POS and other third-party services. Biteperk remains responsible for its own contractual obligations but is not liable for a third-party failure to the extent the failure is outside Biteperk's reasonable control and Biteperk has exercised reasonable care in selecting and managing that provider.

15.2 Customer may need separate credentials, subscriptions or licences for Customer-selected third-party integrations. Customer authorises Biteperk to exchange Customer Data with an integration to the extent necessary to perform Customer's documented instructions.

16. Intellectual property

16.1 Biteperk and its licensors retain all intellectual property rights in the Services, software, architecture, interfaces, workflows, prompts, algorithms, Documentation and improvements. Except for the subscription right expressly granted, no right, title or interest is transferred to Customer.

16.2 Customer retains ownership of Customer Data, branding, menus and business content and grants Biteperk a non-exclusive licence to use those materials only as necessary to provide, secure and support the Services and comply with the Agreement.

17. Customer Data and AI training

17.1 As between the parties, Customer owns Customer Data. Biteperk will process Customer Data only as permitted by the Agreement and DPA.

17.2 Biteperk will not sell Customer Personal Data and will not use identifiable caller audio, transcripts, booking/order data or other Customer Personal Data to train general-purpose AI models or models made available to unrelated customers.

17.3 Biteperk may use information that has been effectively de-identified or aggregated so that it does not reasonably identify an individual or Customer for security, capacity planning, service quality measurement and product improvement.

18. Data protection

18.1 Each party shall comply with privacy and data-protection laws applicable to its role. Processing of Customer Personal Data by Biteperk on Customer's behalf is governed by the DPA.

Biteperk Ltd (UK) | Biteperk Pty Ltd (AU)

19. Security

19.1 Biteperk will maintain technical and organisational measures appropriate to risk, including access control, authentication, encryption in transit, protection of stored data where supported, logging/monitoring, vulnerability management, backup/recovery controls and incident-response procedures appropriate to the Services.

20. Confidentiality

20.1 Each party shall protect the other party's non-public business, technical and commercial information using at least reasonable care, use it only for purposes of the Agreement and disclose it only to personnel, contractors, affiliates and advisers who need to know it and are subject to confidentiality obligations.

20.2 This clause does not apply to information that is lawfully public, already known without restriction, independently developed, lawfully received from a third party without restriction, or required to be disclosed by law. Where lawful, the receiving party shall give advance notice of compelled disclosure.

21. Warranties and disclaimers

21.1 Each party warrants that it has authority to enter into the Agreement. Biteperk warrants that it will provide the Services with reasonable skill and care and substantially in accordance with the Documentation.

21.2 Except as expressly stated and to the maximum extent permitted by law, implied warranties, conditions and terms are excluded. Biteperk does not warrant uninterrupted or error-free operation, perfect speech recognition or AI output, or that every booking/order attempt will succeed.

22. Liability

22.1 Nothing excludes or limits liability that cannot lawfully be excluded or limited, including liability for fraud or fraudulent misrepresentation and, where applicable, death or personal injury caused by negligence.

22.2 Subject to clause 22.1, neither party is liable for indirect or consequential loss, or for loss of profit, revenue, goodwill, anticipated savings or opportunity, except to the extent such loss forms part of a third-party claim covered by an indemnity under the Agreement.

22.3 Subject to clauses 22.1 and 22.4, each party's aggregate liability arising out of the Agreement in any rolling 12-month period shall not exceed the fees paid or payable under the affected Order Form during that period.

22.4 Liability for breach of confidentiality, breach of the DPA/data-protection obligations or an intellectual-property indemnity shall not exceed two times the cap in clause 22.3. The regional schedules preserve statutory liabilities and remedies that cannot lawfully be excluded or restricted.

23. Indemnities

23.1 Customer shall defend and indemnify Biteperk against a third-party claim to the extent caused by Customer-provided materials infringing third-party rights, Customer's unlawful use of the Services, or Customer's food/hospitality operations, except to the extent caused by Biteperk's breach, negligence or wilful misconduct.

23.2 Biteperk shall defend and indemnify Customer against a third-party claim that Customer's authorised use of the unmodified Services infringes that third party's intellectual-property rights, subject to prompt notice, reasonable cooperation and Biteperk controlling the defence and settlement. The indemnity does not apply to Customer modifications, unauthorised combinations or Customer materials.

24. Suspension

24.1 Biteperk may suspend only the affected Services and only to the extent reasonably necessary where there is a material security risk, unlawful use, material breach, materially overdue undisputed fees, a legal requirement or a need to protect the platform or other customers. Where practicable, Biteperk will give prior notice and an opportunity to remedy.

25. Termination

25.1 Either party may terminate the affected Order Form for a material breach not remedied within 30 days after written notice, or immediately for insolvency where permitted by law. Biteperk may terminate where continuing the affected Service would be unlawful.

26. Effect of termination

26.1 On termination, Customer's access rights cease, accrued fees remain due and Customer Personal Data is returned or deleted in accordance with the DPA and Retention Policy. Biteperk will provide any export period stated in the Order Form or, if none is stated, a reasonable export opportunity where technically practicable.

27. Publicity

27.1 Biteperk will not use Customer's name, trading name or logo as a public customer reference without Customer's prior permission.

28. Force majeure

28.1 Neither party is liable for delay or failure caused by events beyond its reasonable control, except that this clause does not excuse payment obligations already accrued. The affected party shall use reasonable efforts to mitigate the effect of the event.

29. Assignment

29.1 Neither party may assign the Agreement without the other party's prior written consent, not to be unreasonably withheld, except that Biteperk may assign to an affiliate or in connection with a merger, reorganisation or sale of the relevant business, provided the assignee assumes Biteperk's obligations.

30. Notices

30.1 Formal notices shall be sent to the legal or billing contact stated in the Order Form, or to an updated notice address notified in writing. A notice by email is effective when received, provided the sender does not receive an automated failure notice.

31. General

31.1 The parties are independent contractors. The Agreement creates no partnership, joint venture, franchise, employment or agency relationship. A failure to enforce a right is not a waiver. If a provision is unenforceable, it shall be limited or severed to the minimum extent necessary and the remainder shall continue in effect.

31.2 The Agreement is the entire agreement concerning the Services and supersedes prior discussions relating to the same subject matter, without excluding liability for fraud or fraudulent misrepresentation.

32. Electronic acceptance and records

32.1 The Agreement may be accepted electronically. Acceptance of an Order Form that links to or identifies these Terms constitutes acceptance of the applicable version. Biteperk may retain the accepted Order Form, Terms version, timestamp, account identifier and accepting user details as evidence of acceptance.

Schedule 1 - United Kingdom Regional Terms

This Schedule applies where the Order Form identifies the Customer Territory as United Kingdom.

- Contracting entity: Biteperk Ltd, company number 17379647, incorporated in England and Wales, with registered office at 124 City Road, London, England, EC1V 2NX.
- Governing law: the laws of England and Wales. The courts of England and Wales have exclusive jurisdiction, subject to mandatory rights that cannot lawfully be excluded.
- UK GDPR: for caller, booking/order and other Customer Personal Data processed on Customer's behalf, Customer will ordinarily be Controller and Biteperk Ltd Processor, subject to the DPA and the parties' actual roles for a particular processing activity.
- Restricted transfers: if Biteperk Ltd makes a restricted transfer of UK Personal Data to Biteperk Pty Ltd in Australia or another recipient outside the UK without adequacy, Biteperk shall put in place an appropriate Article 46 safeguard (including the then-current IDTA or UK Addendum where appropriate) and complete the required transfer assessment/data-protection test.
- Nothing in the Agreement excludes or limits rights or liabilities that cannot be excluded under applicable UK law.

Schedule 2 - Australia Regional Terms

This Schedule applies where the Order Form identifies the Customer Territory as Australia.

- Contracting entity: Biteperk Pty Ltd, ACN 700 831 303 / ABN 36 700 831 303, of Level 1/457-459 Elizabeth Street, Surry Hills NSW 2010, Australia.
- Governing law: New South Wales, Australia. The courts of New South Wales have non-exclusive jurisdiction to the extent a mandatory Australian law does not require otherwise.
- Privacy: Biteperk will handle Personal Information in accordance with the DPA and, where applicable to Biteperk, the Privacy Act 1988 (Cth) and Australian Privacy Principles.
- Australian Consumer Law: nothing in the Agreement excludes, restricts or modifies any consumer guarantee, right, remedy or liability that cannot lawfully be excluded, restricted or modified. If a guarantee applies and liability may lawfully be limited, Biteperk's liability is limited, at Biteperk's option, to resupplying the services or paying the reasonable cost of having them resupplied.
- Unfair contract terms: each contractual discretion must be exercised reasonably and for a legitimate purpose having regard to the interests of both parties. If a term would otherwise be unfair or unenforceable under mandatory law, it shall be read down to the minimum extent necessary.
- Call recording: Customer is responsible for compliance with applicable Commonwealth, State and Territory laws relating to listening devices, surveillance, recording and privacy, and shall use the configured opening disclosure or another legally sufficient notice.